

Virendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 30 May 2018 · Writ - C No. 19049 of 2018 · **Writ not entertained; relegated to s.152 compounding and Supply Code**

HEADNOTE

A writ assailing recovery of alleged electricity-theft dues is not entertained where the consumer has not challenged the checking report. If an FIR of theft has been lodged, the remedy is compounding under s.152 of the Electricity Act, 2003; if the demand is a provisional assessment arising from theft, the consumer must approach the Executive Engineer under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Virendra Singh filed a writ petition challenging recovery of Rs.5,61,508 as electricity dues. A checking dated 23 August 2014, referred to in a notice dated 20 January 2016, allegedly found that he had been running a flour mill on an unauthorized LT cable even before the meter was installed and energized; he deposited the amount for a regular connection on 30 August 2014. The writ petition omitted any pleading about that checking. He contended that theft allegations were raised only after a later complaint of a faulty meter.

HOLDING-UNITS

INTERPLAY · EA2003::152

theft assessment — compounding and alternate remedy

HOLDING

Where recovery of electricity dues rests on an unchallenged checking report of theft, the High Court will not entertain a writ against the recovery notice. If an FIR has been lodged, the consumer's remedy is compounding under s.152 of the Electricity Act, 2003. If the demand is a provisional assessment arising from theft, the consumer must approach the concerned Executive Engineer; the U.P. Electricity Supply Code, 2005 supplies the statutory remedy. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A writ assailing recovery of alleged electricity-theft dues is not entertained where the consumer has not challenged the checking report.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED THEFT, THE 23.08.2014 CHECKING REPORT, AND THE RS.5,61,508 DEMAND

Petition not entertained on the checking report and demand; relegated to compounding and the Executive Engineer ¶ 1